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By [Electronic Delivery]

Tim Jordan, City President
Haverhill City Council
4 Summer Street, Room 204
Haverhill, MA 01830

Re: 421 East Broadway, Bed and Breakfast Special Permit Application

Dear Pres. Jordan and Members of the Council:

Reference is made to the above matter and the application you have before you for a Special permit for use as a Bed and Breakfast establishment at 421 East Broadway. In that connection, the Council was previously advised by correspondence dated August 20, 2026. This correspondence is intended as a supplement to address resident concerns raised since that time, that is, whether the activities being proposed are truly within the scope of (a) a permitted "bed-and-breakfast establishment" as a primary use or (b) a permitted accessory use. As is explained below, the concerns raised are reasonable and rooted in the language of the City's Zoning Ordinance, and ultimately, resolution of those concerns depends upon this Council's interpretation of the portions of the Zoning Ordinance governing accessory uses.

First, a concern was raised as to whether the hosting of events for up to 30 people is encompassed within a "bed-and-breakfast establishment" principal use permitted under the Haverhill Zoning Ordinance Table of Uses and Parking Regulations. As stated in the August 20, 2026 opinion, the Zoning Ordinance defines a "bed-and-breakfast establishment" as "[a]n owner-occupied dwelling with not more than six rooms available for overnight rental, with or without breakfast." (Zoning Ordinance § 11.1.) Zoning Ordinance § 3.1.1 provides:

"Except as provided in the Zoning Act or in this chapter, no building, structure or land shall be used except for the purposes permitted in the district as described in this section. Any use not listed shall be construed to be prohibited."

Clearly, the hosting of 30 or more people is not encompassed within the renting of six (6) overnight rooms and possibly serving the occupants of those rooms breakfast. Therefore, conducting such events is not permitted as part of an allowed "bed-and-breakfast establishment." Notably, the Applicant has not identified any other principal use which is permitted in the RR Zoning District allowing for such events. Therefore, it would appear the concerned citizens are correct that such events are not permitted within the scope of an allowed principal use.

Second, a concern was raised that the hosting of events of 30 or more people is not permitted as an accessory use within the RR zoning district. While it is true that there does not appear to be a single accessory use in the Zoning Ordinance's

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Table of Use and Parking Regulations which corresponds to an event space, restaurant, or lounge/bar which is allowed in the RR Zoning District, the statement in the Zoning Ordinance that "[a]ny use not listed shall be construed to be prohibited" is set forth under the heading of "principal uses," albeit under a subheading of "applicability of use regulations," but in any event, not under the heading of "accessory uses." There is no similar statement under the heading of "accessory uses" that "[a]ny use not listed shall be construed to be prohibited." Therefore, there is an ambiguity in the Zoning Ordinance as to whether only the accessory uses listed in the use table are permitted, or if other uses which are not listed may also allowed as lawful accessory uses.

As with other questions of ordinance interpretation, local authorities are entitled to deference in their interpretations, so long as such interpretations are reasonable. Here, one possible interpretation is that the absence of a statement that "[a]ny use not listed shall be construed to be prohibited" under the heading of "accessory uses," where such a limitation is placed under the heading of "principal uses," means that such a limitation does not apply to accessory uses. A competing interpretation is that the absence of a definition of "accessory use" in the Zoning Ordinance, coupled with the fact that the limitation of "[a]ny use not listed shall be construed to be prohibited" is located under a subheading entitled "applicability of use regulations" (i.e., perhaps all use regulations, not only those governing principal uses), means that only the accessory uses listed within the use table are permitted, and that all other accessory uses are prohibited. Under applicable law, the Council is tasked with resolving this interpretive question in deciding the special permit application now before it.

If the City Council finds that only the accessory uses listed in the use table are permitted, then unless the Applicant is able to identify an applicable accessory use within the table, any Special Permit the City Council issues would only pertain to the strict definition of a "bed-and-breakfast establishment," that is, six rooms for rent with the possibility of serving guests breakfast. Alternatively, if the City Council finds that the Zoning Ordinance possibly allows for unlisted accessory uses, then the City Council must then determine the criteria for such uses under the Zoning Ordinance. The Ordinance does not define "accessory use," but does define an "accessory building" as "[a] detached building, the use of which is customarily incidental and subordinate to that of the principal building and which is located on the same lot as that occupied by the principal building...." Accordingly, to the extent the Council believes the Zoning Ordinance is intended to permit unlisted accessory uses, it would be reasonable to engage in an analysis if, when reading the entire Zoning Ordinance in context, 30-person events and/or dinner events are customarily incidental to the operation of a bed-and-breakfast establishment, whereby an affirmative answer would permit the Council to authorize such events within the scope of a special permit and a negative answer would require the Applicant to seek relief through other lawful means.

Finally, regardless, the Council may not permit uses otherwise prohibited under the Ordinance or which are subject to the review and approval of another permit granting authority.

Should you require any further information please let me know.

Sincerely,

A handwritten signature in dark ink, appearing to read 'Lisa Mead', written over a horizontal line.

Atty. Lisa Mead, City Solicitor

cc: Melinda E. Barrett, Mayor
Thomas Bridgewater, Building Commissioner